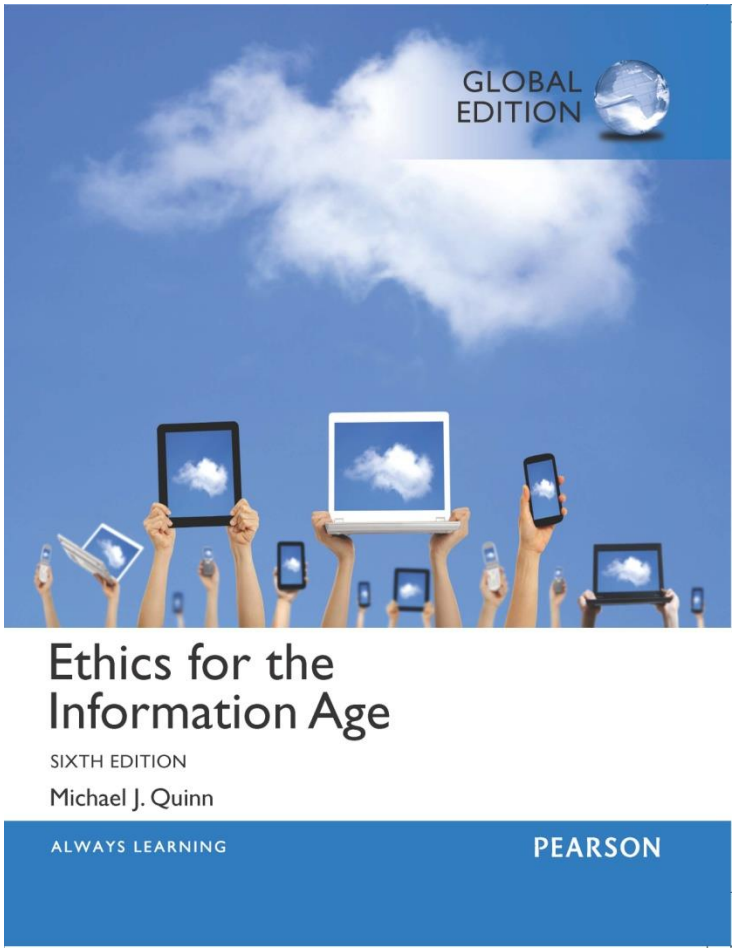


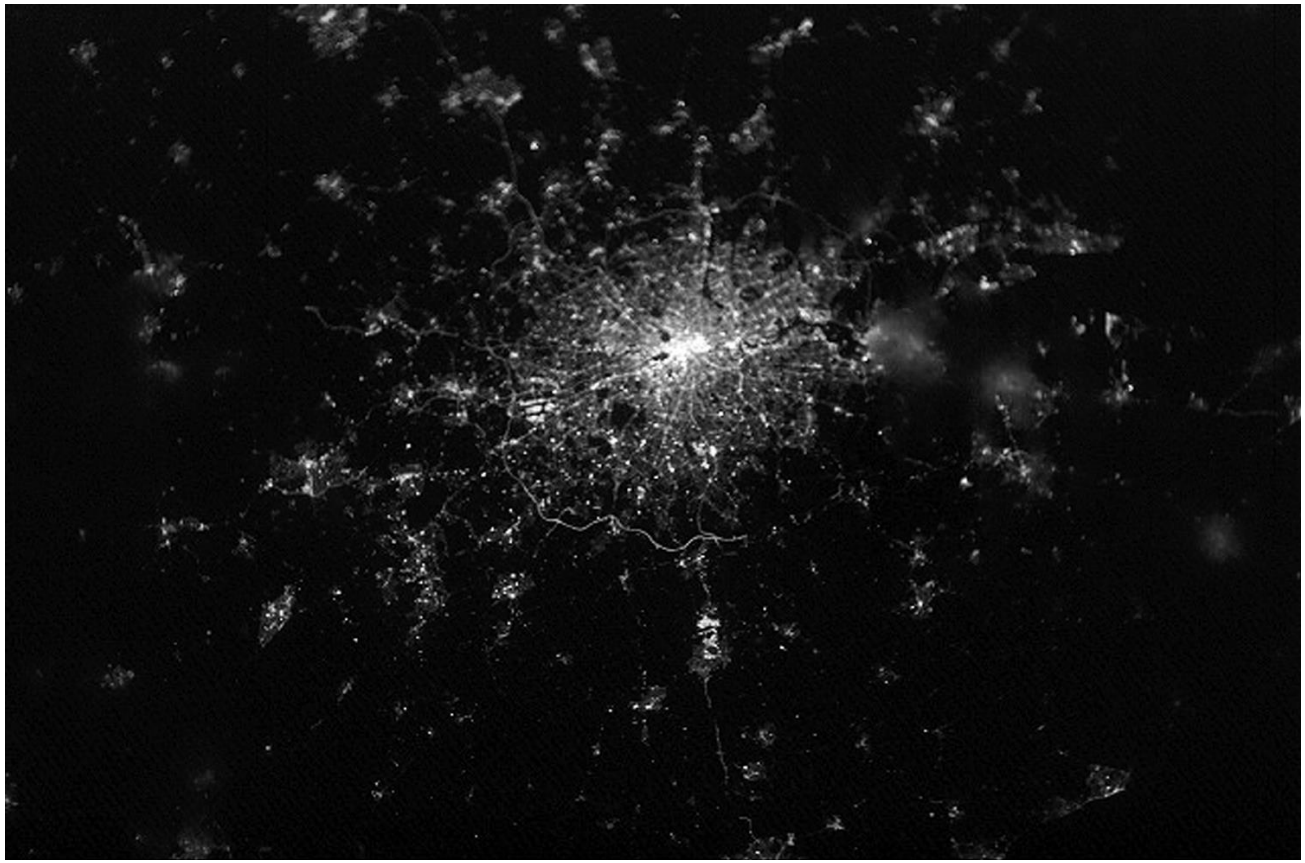
Chapter 2: Introduction to Ethics

Chapter Overview

- Introduction
- Review of nine ethical theories
- Comparing workable ethical theories
- Morality of breaking the law

2.1 Introduction

We Live in Communities
(London, England at night from space)



Courtesy of NASA

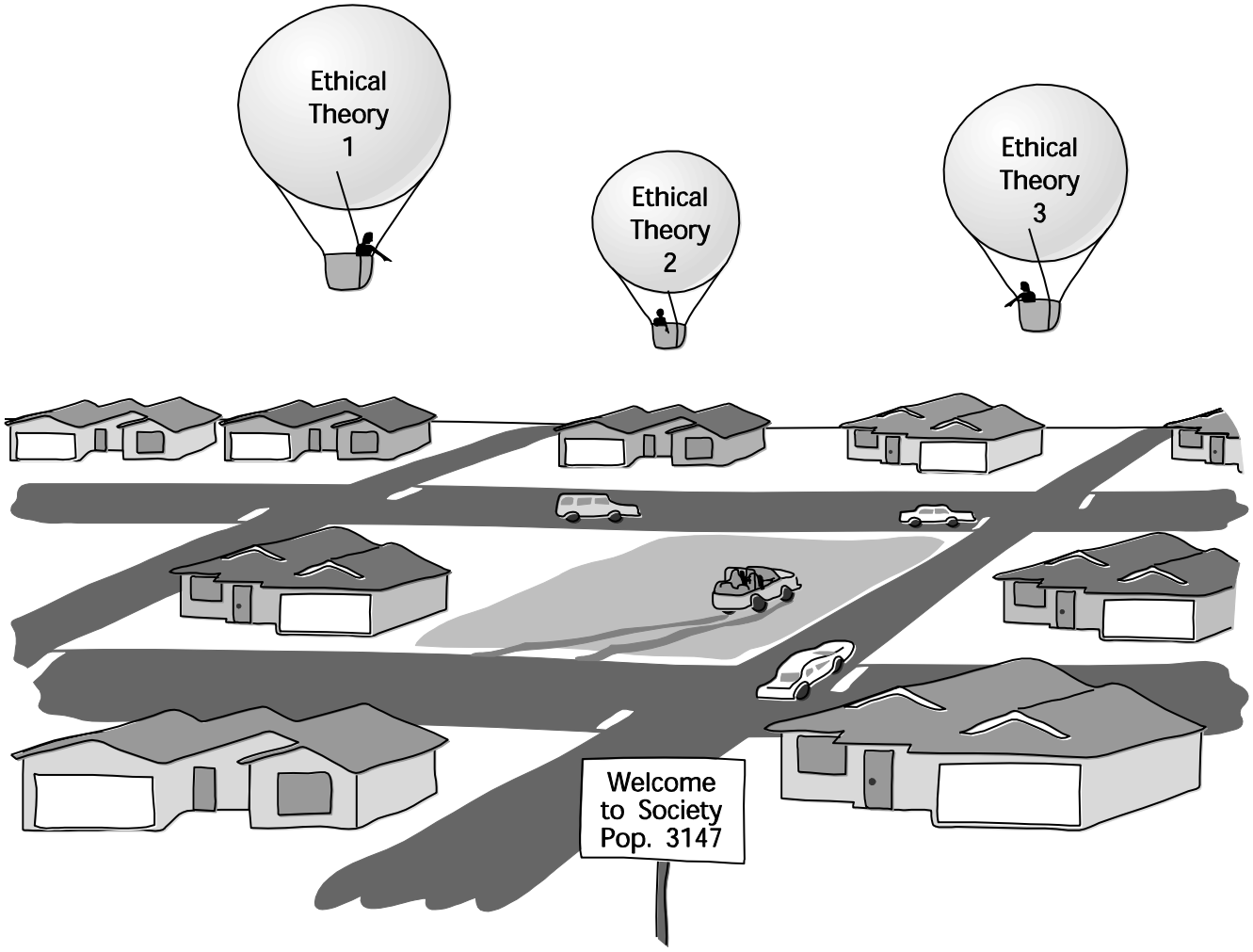
The Ethical Point of View

- Most everyone shares “core values”, desiring:
  - Life
  - Happiness
  - Ability to accomplish goals
- Two ways to view world
  - Selfish point of view: consider only your own self and your core values
  - Ethical point of view: respect other people and their core values

Defining Terms

- Society
  - Association of people organized under a system of rules
  - Rules: advance the good of members over time
- Morality
  - A society's rules of conduct
  - What people ought / ought not to do in various situations
- Ethics
  - Rational examination of morality
  - Evaluation of people's behavior

Analogy for Difference between Morality and Ethics



Why Study Ethics?

- Ethics: a way to decide the best thing to do
- New problems accompany new technologies
- “Common wisdom” may not exist for novel situations brought about by new technologies

Scenario 1

Alexis, a gifted high school student, wants to become a doctor. Because she comes from a poor family, she will need a scholarship in order to attend college. Some of her classes require students to do extra research projects in order to get an A. Her high school has a few older PCs, but there are always long lines of students waiting to use them during the school day. After school, she usually works at a part-time job to help support her family. One evening Alexis visits the library of a private college a few miles from her family's apartment, and she finds plenty of unused PCs connected to the Internet. She surreptitiously looks over the shoulder of another student to learn a valid login/password combination. Alexis returns to the library several times a week, and by using its PCs and printers she efficiently completes the extra research projects, graduates from high school with straight A's, and gets a full ride scholarship to attend a prestigious university.

Scenario 1

- Did Alexis do anything wrong?
- Who benefited from Alexis's course of action?
- Who was hurt by Alexis's course of action?
- Did Alexis have an unfair advantage over her high school classmates?
- Would any of your answers change if it turns out Alexis did not win a college scholarship after all?
- Are there better ways Alexis could have achieved her objective?
- What additional information, if any, would help you answer the previous questions?

Scenario 2

An organization dedicated to reducing spam tries to get Internet service providers (ISPs) in an East Asian country to stop the spammers by protecting their mail servers. When this effort is unsuccessful, the antispam organization puts the addresses of these ISPs on its blacklist. Many ISPs in the United States consult the blacklist and refuse to accept email from the blacklisted ISPs. This action has two results. First, the amount of spam received by the typical email user in the United States drops by 25 percent. Second, tens of thousands of innocent computer users in the East Asian country are unable to send email to friends and business associates in the United States.

Scenario 2

- Did the antispam organization do anything wrong?
- Did the ISPs that refused to accept email from the blacklisted ISPs do anything wrong?
- Who benefited from the organization's action?
- Who was hurt by the organization's action?
- Could the organization have achieved its goals through a better course of action?
- What additional information, if any, would help you answer the previous questions?

Scenario 3

In an attempt to deter speeders, the East Dakota State Police (EDSP) installs video cameras on all of its freeway overpasses. The cameras are connected to computers that can reliably detect cars traveling more than five miles per hour above the speed limit. These computers have sophisticated image recognition software that enables them to read license plate numbers and capture high resolution pictures of vehicle drivers. If the picture of the driver matches the driver's license photo of one of the registered owners of the car, the system issues a speeding ticket to the driver, complete with photo evidence. Six months after the system is put into operation, the number of people speeding on East Dakota freeways is reduced by 90 percent. The FBI asks the EDSP for real-time access to the information collected by the video cameras. The EDSP complies with this request. Three months later, the FBI uses this information to arrest five members of a terrorist organization.

Scenario 3

- Did the East Dakota State Police do anything wrong?
- Who benefited from the actions of the EDSP?
- Who was harmed by the actions of the EDSP?
- What other courses of action could the EDSP have taken to achieve its objectives?
- What additional information, if any, would help you answer the previous questions?

Scenario 4

You are the senior software engineer at a start-up company developing an exciting new product that will allow salespeople to generate and email sales quotes and customer invoices from their smartphones. Your company's sales force has led a major corporation to believe your product will be available next week. Unfortunately, at this point the software still contains quite a few bugs. The leader of the testing group has reported that all of the known bugs appear to be minor, but it will take another month of testing for his team to be confident the product contains no catastrophic errors. Because of the fierce competition in the smartphone software industry, it is critical that your company be "first to market." To the best of your knowledge, a well-established company will release a similar product in a few weeks. If its product appears first, your start-up company will probably go out of business.

Scenario 4

- Should you recommend release of the product next week?
- Who will benefit if the company follows your recommendation?
- Who will be harmed if the company follows your recommendation?
- Do you have an obligation to any group of people that may be affected by your decision?
- What additional information, if any, would help you answer the previous questions?

More on Ethics

- Ethics: rational, systematic analysis
  - "Doing ethics" means explaining conclusions
  - Best explanations based on facts, shared values, logic
- Ethics focuses on people's voluntary, moral choices
- Workable ethical theory: produces explanations that might be persuasive to a skeptical, yet open-minded audience

A Good Ethical Theory Supports Persuasive, Logical Arguments



2.2 Subjective Relativism

What Is Relativism?

- Relativism
  - No universal norms of right and wrong
  - One person can say “X is right,” another can say “X is wrong,” and both can be right
- Subjective relativism
  - Each person decides right and wrong for himself or herself
  - “What’s right for you may not be right for me”

Case for Subjective Relativism

- Well-meaning and intelligent people disagree on moral issues
- Ethical debates are disagreeable and pointless

Case Against Subjective Relativism

- Blurs line between doing what you think is right and doing what you want to do
- Makes no moral distinction between the actions of different people
- SR and tolerance are two different things
- Decisions may not be based on reason
- Not a workable ethical theory

2.3 Cultural Relativism

Cultural Relativism in a Nutshell

- What is “right” and “wrong” depends upon a society’s actual moral guidelines
- These guidelines vary from place to place and from time to time
- A particular action may be right in one society at one time and wrong in other society or at another time

Case for Cultural Relativism

- Different social contexts demand different moral guidelines
- It is arrogant for one society to judge another

Case Against Cultural Relativism

- Because two societies ***do*** have different moral views doesn't mean they ***ought to*** have different views
- It doesn't explain how moral guidelines are determined
- What if there are no cultural norms?
- It doesn't account for evolution of moral guidelines.
- It provides no way out for cultures in conflict
- Existence of many acceptable practices does not imply all practices are acceptable (many/any fallacy)
- Societies do, in fact, share certain core values
- Only indirectly based on reason
- Not a workable ethical theory

2.4 Divine Command Theory

Overview of Divine Command Theory

- Good actions: those aligned with God's will
- Bad actions: those contrary to God's will
- Holy books reveal God's will
- We should use holy books as moral decision-making guides

Divine Command Theory in Action

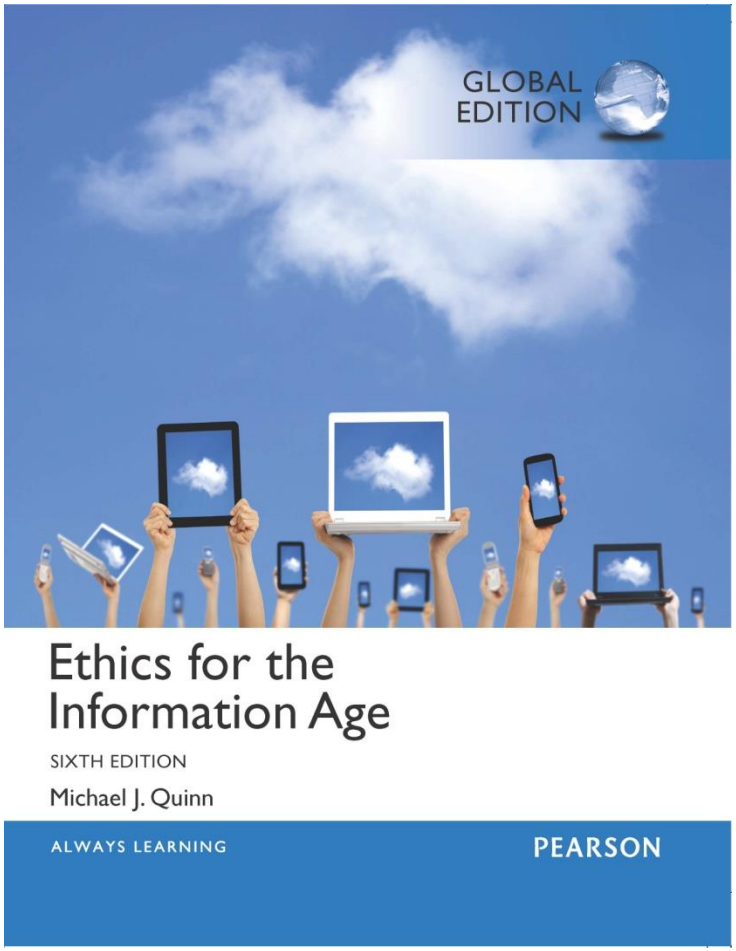


Case for Divine Command Theory

- We owe obedience to our Creator
- God is all-good and all-knowing
- God is the ultimate authority

Case Against Divine Command Theory

- Different holy books disagree on certain teachings
- Society is multicultural, secular
- Some modern moral problems not directly addressed in scripture
- “The good” ≠ “God” (equivalence fallacy)
- Based on obedience, not reason
- Not a workable ethical theory for our purposes



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2.5 Ethical Egoism

Definition of Ethical Egoism

- Each person should focus exclusively on his or her self-interest
- Morally right action: that action that provides self with maximum long-term benefit
- Ayn Rand, author of *The Fountainhead* and *Atlas Shrugged*, espoused a theory akin to ethical egoism

Case for Ethical Egoism

- It is practical since we are already inclined to do what's best for ourselves
- It is better to let other people take care of themselves
- The community can benefit when individuals put their well-being first
- Other moral principles are rooted in the principle of self-interest

Case Against Ethical Egoism

- An easy moral philosophy may not be the best moral philosophy
- We know a lot about what is good for someone else
- Self-interest can lead to blatantly immoral behavior
- Other moral principles are superior to principle of self-interest
- People who take the good of others into account lead happier lives
- By definition, does not respect the ethical point of view
- Not a workable ethical theory

2.6 Kantianism

Critical Importance of Good Will

- Good will: the desire to do the right thing
- Immanuel Kant: Only thing in the world that is good without qualification is a good will
- Reason should cultivate desire to do right thing

Categorical Imperative (1st Formulation)

Act only from moral rules that you can at the same time will to be universal moral laws.

Illustration of 1st Formulation

- Question: Can a person in dire straits make a promise with the intention of breaking it later?
- Proposed rule: “I may make promises with the intention of later breaking them.”
- The person in trouble wants his promise to be believed so he can get what he needs.
- Universalize rule: Everyone may make & break promises
- Everyone breaking promises would make promises unbelievable, contradicting desire to have promise believed
- The rule is flawed. The answer is “No.”

A Quick Check

- When evaluating a proposed action, reverse roles
- What would you think if that person did the same thing to you?
- Negative reaction $\rightarrow$ evidence that your will to do that action violates the Categorical Imperative

Categorical Imperative (2nd Formulation)

Act so that you treat both yourself
and other people as ends in themselves
and never only as a means to an end.

This is usually an easier formulation to work with than the first formulation of the Categorical Imperative.

Kant: Wrong to Use Another Person Solely as a Means to an End



Plagiarism Scenario

- Carla
  - Single mother
  - Works full time
  - Takes two evening courses/semester
- History class
  - Requires more wor
  - k than normal
  - Carla earning an “A” on all work so far
  - Carla doesn’t have time to write final report
- Carla purchases report; submits it as her own work

Kantian Evaluation (1st Formulation)

- Carla wants credit for plagiarized report
- Rule: “You may claim credit for work performed by someone else”
- If rule universalized, reports would no longer be credible indicator’s of student’s knowledge, and professors would not give credit for reports
- Proposal moral rule is self-defeating
- It is wrong for Carla to turn in a purchased report

Kantian Evaluation (2nd Formulation)

- Carla submitted another person's work as her own
- She attempted to deceive professor
- She treated professor as a means to an end
  - End: passing the course
  - Means: manipulate professor
- What Carla did was wrong

Case for Kantianism

- Aligns with common moral concern: “What if everyone acted that way?”
- Produces universal moral guidelines
- Treats all persons as moral equals

Perfect and Imperfect Duties

- Perfect duty: duty obliged to fulfill without exception
  - Example: Telling the truth
- Imperfect duty: duty obliged to fulfill in general but not in every instance
  - Example: Helping others

Case Against Kantianism

- Sometimes no rule adequately characterizes an action
- Sometimes there is no way to resolve a conflict between rules
  - In a conflict between a perfect duty and an imperfect duty, perfect duty prevails
  - In a conflict between two perfect duties, no solution
- Kantianism allows no exceptions to perfect duties
- Despite weaknesses, a workable ethical theory

2.7 Act Utilitarianism

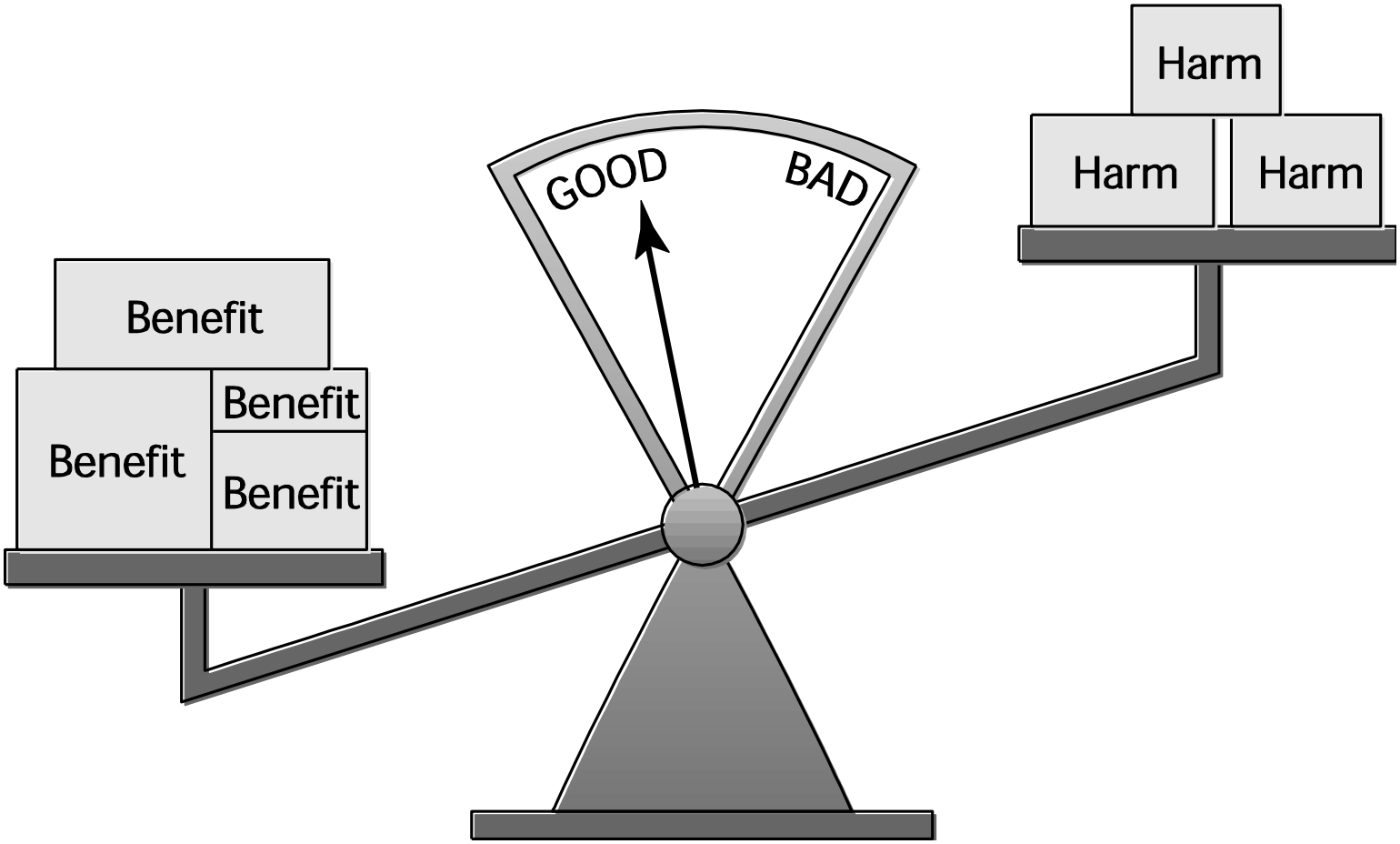
Principle of Utility

- Jeremy Bentham and John Stuart Mill
- An action is good if its benefits exceeds its harms
- An action is bad if its harms exceed its benefits
- Utility: tendency of an object to produce happiness or prevent unhappiness for an individual or a community
- Happiness = advantage = benefit = good = pleasure
- Unhappiness = disadvantage = cost = evil = pain

Principle of Utility
(Greatest Happiness Principle)

An action is right (or wrong) to the extent that it increases (or decreases) the total happiness of the affected parties.

Principle of Utility



Act Utilitarianism

- Utilitarianism
  - Morality of an action has nothing to do with intent
  - Focuses on the consequences
  - A consequentialist theory
- Act utilitarianism
  - Add up change in happiness of all affected beings
  - Sum > 0, action is good
  - Sum < 0, action is bad
  - Right action to take: one that maximizes the sum

2.8 Rule Utilitarianism

Applying Principle of Utility to Rules

- We ought to adopt moral rules which, if followed by everyone, will lead to the greatest increase in total happiness
- Act utilitarianism applies Principle of Utility to individual actions
- Rule utilitarianism applies Principle of Utility to moral rules

Anti-Worm Scenario

- August 2003: Blaster worm infected thousands of Windows computers
- Soon after, Nachi worm appeared
  - Took control of vulnerable computer
  - Located and destroyed copies of Blaster
  - Downloaded software patch to fix security problem
  - Used computer as launching pad to try to “infect” other vulnerable PCs

Evaluation using Rule Utilitarianism

- Proposed rule: If I can write a helpful worm that removes a harmful worm from infected computers and shields them from future attacks, I should do so
- Who would benefit
  - People who do not keep their systems updated
- Who would be harmed
  - People who use networks
  - People who's computers are invaded by buggy anti-worms
  - System administrators
- Conclusion: Harm outweighs benefits. Releasing anti-worm is wrong.

Case for Rule Utilitarianism

- Not every moral decision requires performing utilitarian calculus
- Moral rules survive exceptional situations
- Avoids the problem of moral luck
- Reduces the problem of bias
- Appeals to a wide cross-section of society

Case Against Utilitarianism in General

- All consequences must be measured on a single scale.
  - All units must be the same in order to do the sum
  - In certain circumstances utilitarians must quantify the value of a human life
- Utilitarianism ignores the problem of an unjust distribution of good consequences.
  - Utilitarianism does **not** mean “the greatest good of the greatest number”
  - That requires a principle of justice
  - What happens when a conflict arises between the Principle of Utility and a principle of justice?
- Despite weaknesses, both act utilitarianism and rule utilitarianism are workable ethical theories

2.9 Social Contract Theory

Basis of Social Contract Theory

- Thomas Hobbes
  - In a “state of nature” our lives would be “solitary, poor, nasty, brutish, and short”
  - We ***implicitly*** accept a social contract
    - Establishment of moral rules to govern relations among citizens
    - Government capable of enforcing these rules
- Jean-Jacques Rousseau
  - In ideal society, no one above rules
  - That prevents society from enact bad rules

James Rachels's Definition

"Morality consists in the set of rules, governing how people are to treat one another, that rational people will agree to accept, for their mutual benefit, on the condition that others follow those rules as well."

Kinds of Rights

- Negative right: A right that another can guarantee by leaving you alone
- Positive right: A right obligating others to do something on your behalf
- Absolute right: A right guaranteed without exception
- Limited right: A right that may be restricted based on the circumstances

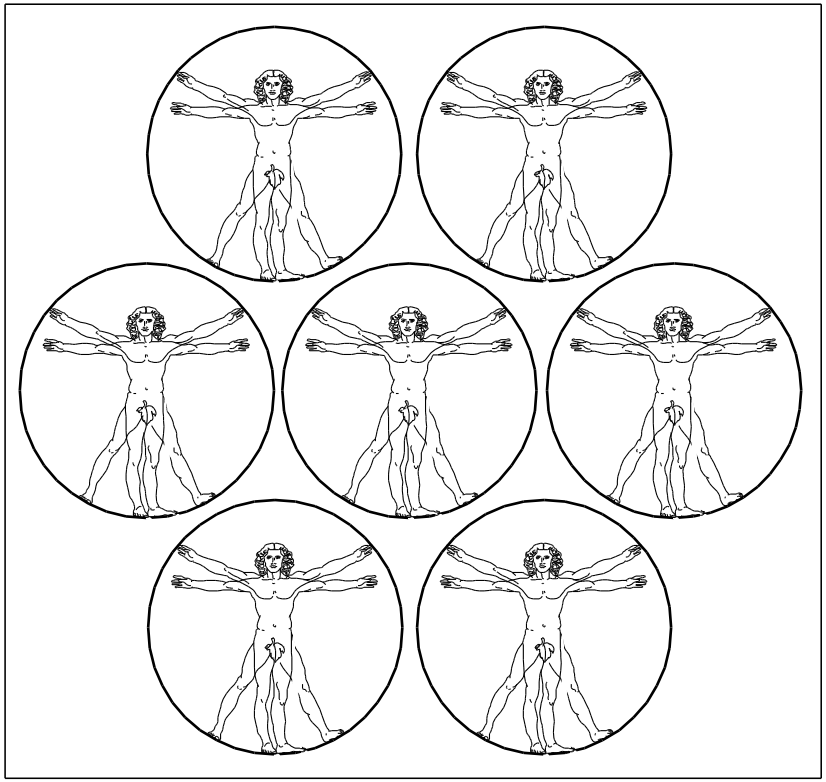
Correlation between Types of Rights

- Positive rights tend to be more limited
- Negative rights tends to be more absolute

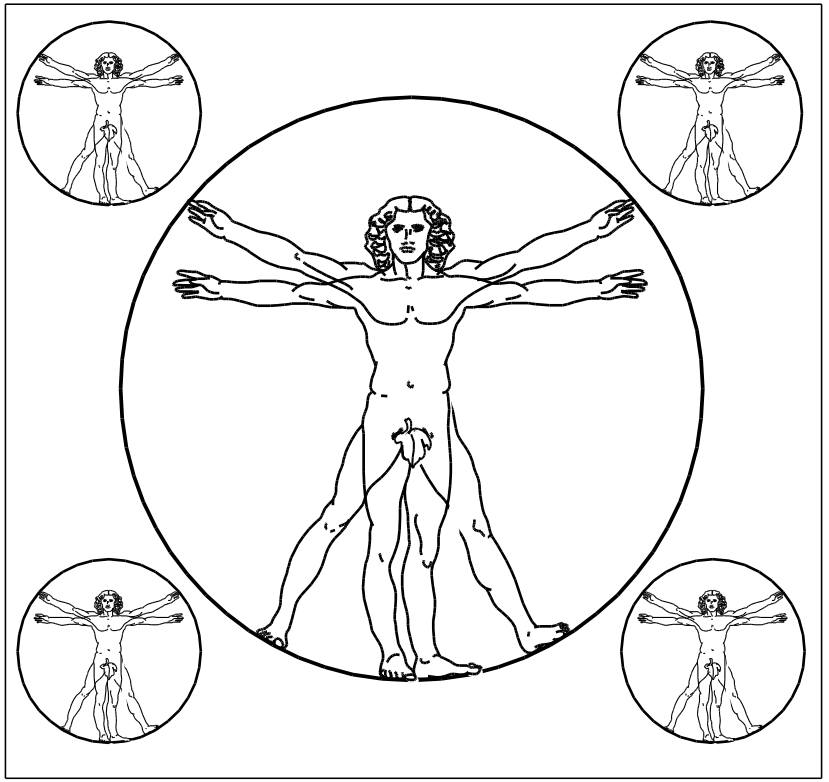
John Rawls's Principles of Justice

- Each person may claim a "fully adequate" number of basic rights and liberties, so long as these claims are consistent with everyone else having a claim to the same rights and liberties
- Any social and economic inequalities must
  - Be associated with positions that everyone has a fair and equal opportunity to achieve
  - Be to the greatest benefit of the least-advantaged members of society (the difference principle)

Rawls's First Principle of Justice

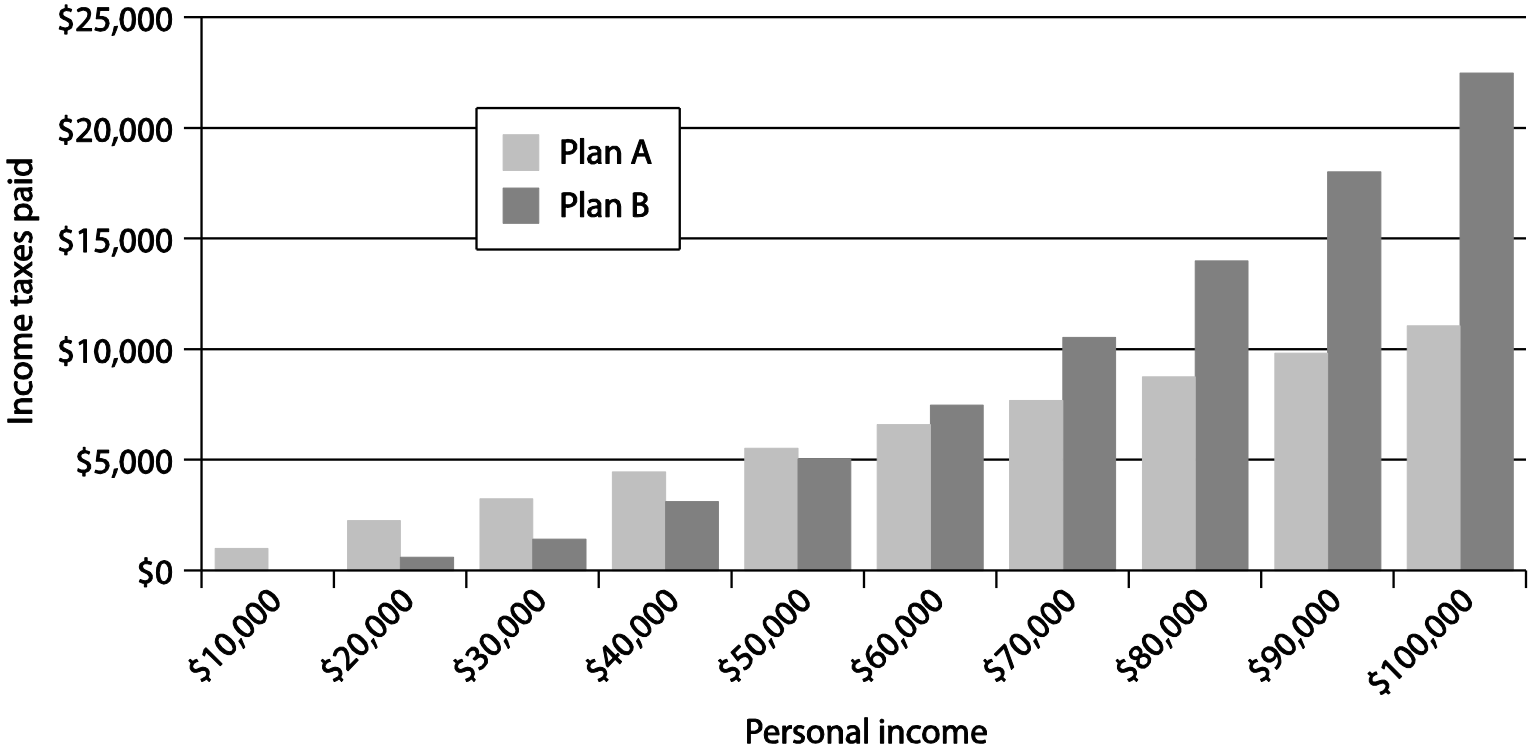


Just



Unjust

Rawls's Difference Principle



DVD Rental Scenario

- Bill owns chain of DVD rental stores
- Collects information about rentals from customers
- Constructs profiles of customers
- Sells profiles to direct marketing firms
- Some customers happy to receive more mail order catalogs; others unhappy at increase in “junk mail”

Evaluation (Social Contract Theory)

- Consider rights of Bill, customers, and mail order companies.
- Does customer have right to expect name, address to be kept confidential?
- If customer rents DVD from bill, who owns information about transaction?
- If Bill and customer have equal rights to information, Bill did nothing wrong to sell information.
- If customers have right to expect name and address or transaction to be confidential without giving permission, then Bill was wrong to sell information without asking for permission.

Case for Social Contract Theory

- Framed in language of rights
- Explains why people act in self-interest in absence of common agreement
- Provides clear analysis of certain citizen/government problems
  - Why okay for government to deprive criminals of certain rights
  - Why civil obedience can be morally right action
- Workable ethical theory

Case Against Social Contract Theory

- No one signed social contract
- Some actions have multiple characterizations
- Conflicting rights problem
- May unjustly treat people incapable of upholding contract
- Despite weaknesses, a workable theory

2.10 Virtue Ethics

Critique of Enlightenment Theories

- Kantianism, utilitarianism, social contract theory ignore important moral considerations
  - moral education
  - moral wisdom
  - family and social relationships
  - role of emotions
- Virtue ethics
  - *arete*, virtue, excellence: reaching highest potential
  - Aristotle's *Nicomachean Ethics* (4th century BC)

Virtues and Vices

- Two types of virtue
  - intellectual virtues: virtues associated with reasoning and truth
  - moral virtues: virtues of character (e.g., honesty)
- Moral virtues
  - developed by habitually performing right action
  - deep-seated character traits
  - disposition to act in a certain way *and* feel in a certain way

Aristotle: Happiness derives from living a life of virtue.



Summary of Virtue Ethics

A right action is an action that a virtuous person, acting in character, would do in the same circumstances.

A virtuous person is a person who possesses and lives out the virtues.

The virtues are those character traits human beings needs in order to flourish and be truly happy.

Vices

- Vices are opposite of virtues
- Vice: a character trait that prevents a human being from flourishing or being truly happy
- Often, a virtue situated between two vices
  - Courage between cowardliness and rashness
  - Generosity between stinginess and prodigality

Case for Virtue Ethics

- It often makes more sense to focus on virtues than obligations, rights, or consequences
- Personal relationships can be morally relevant to decision making
- Our moral decision-making skills develop over time
- With this theory there are no irresolvable moral dilemmas
- Emotions play an important role in living a moral life

Case Against Virtue Ethics

- Reasonable people may disagree on character traits needed for human flourishing
- Cannot use virtue ethics to guide government policy
- Virtue ethics undermines attempts to hold people responsible for their bad actions
- Despite weaknesses, virtue ethics a workable theory

2.11 Comparing Workable Ethical Theories

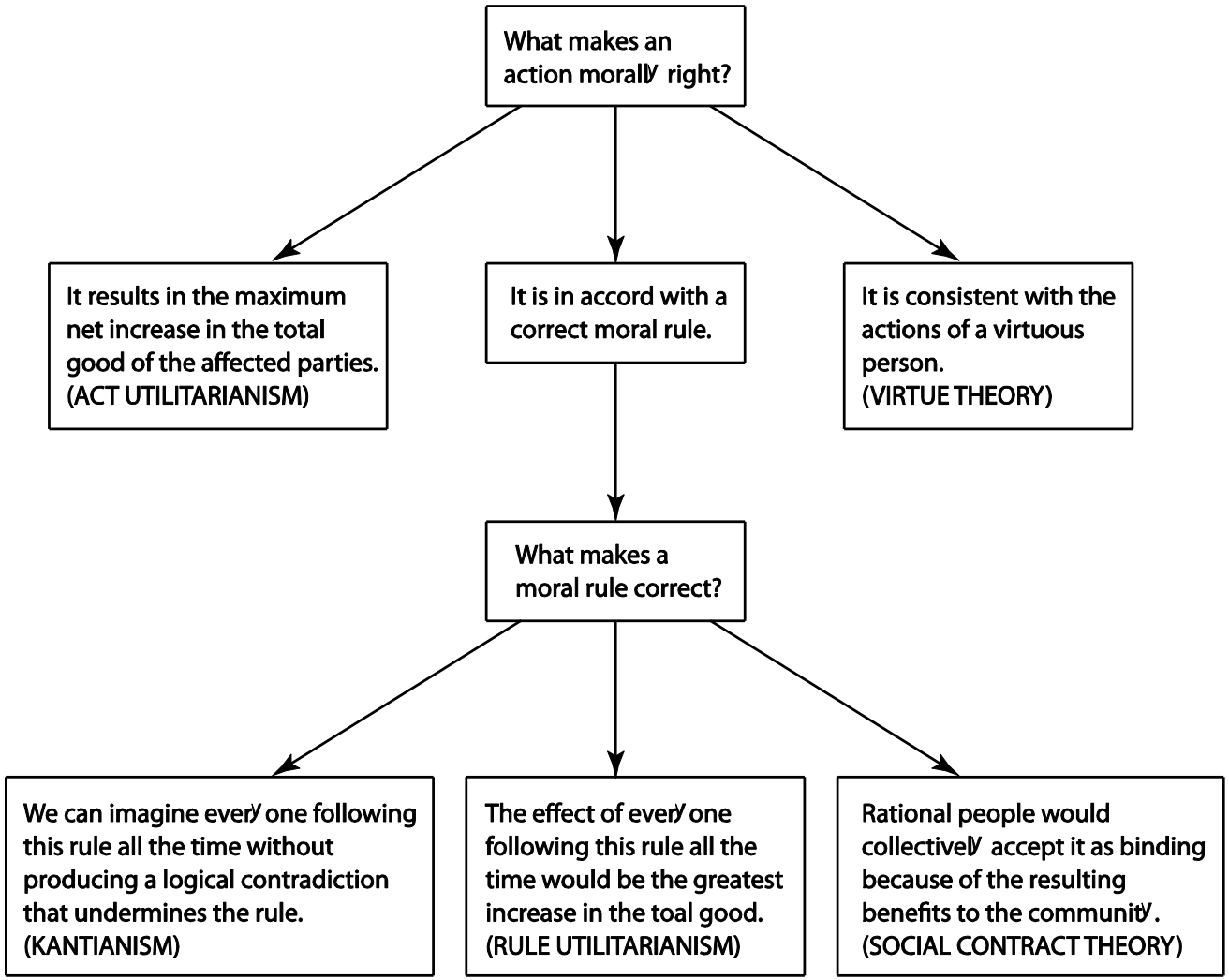
Objectivism vs. Relativism

- Objectivism: Morality has an existence outside the human mind
- Relativism: Morality is a human invention
- Divine command theory, ethical egoism, Kantianism, utilitarianism, social contract theory, and virtue ethics examples of objectivism

Workable Ethical Theories

- We seek theories with these characteristics:
  - Based on the ethical point of view
  - Objective moral principles developed using logical reasoning based on facts and commonly held values
- Workable ethical theories
  - Kantianism
  - Act and rule utilitarianism
  - Social contract theory
  - Virtue ethics

Comparing Workable Ethical Theories



2.12 Morality of Breaking the Law

Social Contract Theory Perspective

- Everyone in society bears certain burdens in order to receive certain benefits
- Legal system supposed to guarantee people's rights are protected
- Everything else being equal, we should be law-abiding
- Should only break law if compelled to follow a higher-order moral obligation

Social Contract: A Prima Facie Obligation to Obey the Law



Kantian Perspective

- Everyone wants to be treated justly
- Imagine rule: “I may break a law I believe to be unjust”
- If everyone acted according to this rule, then laws would be subverted
- Contradiction: Cannot both wish to be treated justly and allow laws to be subverted